

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC046581: TIMOTHY BUCHANAN, et al. vs HYUNDAI MOTOR AMERICA

08/25/2026 in Department 44

Demurrer to & Motion to Strike Plaintiffs' First Amended Complaint

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Demurrer to Plaintiffs' First Amended Complaint

Tentative Ruling:

Defendant Hyundai Motor America's Request for Judicial Notice is GRANTED as to the existence and contents of the Department of Consumer Affairs' official record and HMA's inclusion on the list of electing manufacturers. The Court does not judicially notice HMA's proposed legal conclusions concerning the effect of that election.

Defendant Hyundai Motor America's Demurrer to the Fifth Cause of Action for Fraudulent Inducement-Concealment is OVERRULED. The Complaint contains allegations sufficient to maintain a fraudulent concealment cause of action via the alleged transactional relationship between Plaintiff and Defendant, and to overcome the argument that the claims are barred by the economic loss rule as contemplated in *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1 and *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, and the cases that follow.

Defendant Hyundai Motor America's Motion to Strike is DENIED.

Defendant shall file and serve its answer to the First Amended Complaint within 10 days after service of notice of this ruling, unless otherwise ordered. (Cal. Rules of Court, rule 3.1320(g).)

The case management conference is continued to **October 23, 2026 at 8:35 a.m.**

Plaintiffs to give notice.